

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (*Caluson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted with “oppression, fraud and malice” toward plaintiff are insufficient legal conclusions to show that plaintiff is entitled to an award of punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (*Id.*) Civil Code section 3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud.

The challenged punitive damages allegations appear to be associated with the Third Cause of Action for Intentional Interference with a Prospective Economic Advantage, and to a lesser extent, the Fourth Cause of Action under the Unfair Competition Law. Both of these claims are rely on allegations that Defendant intentionally obstructed Plaintiff’s proposed SGMA groundwater-allocation transfers through delay, burdensome conditions, and alleged improper conduct unrelated to conservation purposes. Given the court’s ruling on the demurrer as to the Third and Fourth Causes of Action with leave to amend, the court declines to reach the merits of whether the FAC presently alleges facts sufficient to support punitive damages as the operative pleading will be superseded by amendment. Therefore, the Motion to Strike is denied as moot at this time.

14. S-CV-0056209 Reddy, Catherine v. Dismukes, Bret

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Strike Punitive Damages

Defendants move to strike the prayer for punitive damages from plaintiff’s complaint. No opposition has been filed.

To support punitive damages, plaintiff must allege ultimate facts supporting a finding of oppression, fraud, or malice on defendant’s behalf. (Civ. Code, § 3294, subd. (a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at subd. (c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Id.* at subd. (c)(3).) Here, a careful review of

the complaint reveals no facts supporting a finding of malice, oppression, or fraud against either defendant. The motion to strike is granted and paragraph 14(a)(2) is stricken in its entirety.

Plaintiff bears the burden of demonstrating how the complaint may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) As the motion is unopposed, plaintiff falls short of this burden. Accordingly, leave to amend is denied.

15. S-CV-0057201 Weber, Anne Marie v. Wells Fargo Bank NA
T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Consolidate

Anne Marie Weber and Jon G. Jensen ("moving parties"), plaintiffs in S-CV-0057201 and defendants in T-CV-0002801, move to consolidate these two cases. The former is a wrongful foreclosure case brought by the moving parties against defendant Gregory Kern and four entity defendants (Wells Fargo Bank, N.A., Wilmington Savings Fund Society FSB, FCI Lender Services Inc., and Quality Loan Servicing Corporation) for claims of (1) wrongful foreclosure, (2) enforcement of rights under Civil Code section 2429m, (3) quiet title, and (4) declaratory relief. The latter is a post-foreclosure unlawful detainer action brought by Gregory Kern against Anne Marie Weber, Richard Finch, and by way of prejudgment claim of right to possession Jon G. Jensen. Kern opposes the motion to consolidate.

Preliminary Matters

Moving parties' request for judicial notice is granted.

Kern's request for judicial notice is granted as to exhibits B through K and denied as to exhibit A.

Gregory Kern filed an opposition on May 11, 2026 and then, without obtaining leave of court, filed a supplemental opposition on May 20, 2026. Seeing no objection from the moving parties, the court exercises its discretion to consider all briefing submitted in this matter.

Ruling on the Motion

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same real property known as 249 Bend Avenue, Kings Beach, California 96143. The moving parties and Gregory Kern are parties in both actions. However, the four entity defendants